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File No: EXP202213577

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 28, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against GAFAS EN RED DE ÓPTICAS, S.L. (hereinafter the defendant). After notifying the initiation agreement and analyzing the allegations presented, on August 4, 2023, the proposed resolution was issued, which is transcribed below:

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Procedure No: EXP202213577 (PS/096/2023)

PROPOSAL FOR SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 25, 2022, C.C.C. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758, (hereinafter, the defendant), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complaint was filed due to the receipt of commercial emails at his email address after having requested to opt-out.

The complaint submission included the following documentation:

1st.- Dated September 2, 2022, a copy of the email sent by the claimant to the email address servicio-clientes@gafas.es, where it can be read:

"For the third time, I click 'Unsubscribe' again. I hope this time it is final. Otherwise, I will have to report it to the AEPD."

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2/14

2nd.- Dated September 4, 2022, a copy of the email sent from the address "gafas.es" servicio-clientes@gafas.es, to the claimant's email address, where it can be read, among other things:

"Hello, C.C.C.

We would like your opinion regarding our customer service. Therefore, I invite you to answer a simple question by clicking on the following link: How would you rate the support you received? Good, I am satisfied / Bad, I am not satisfied

I remind you of your request: D.D.D.) September 2, 2022, 13:51 CEST

"Good morning, C.C.C., All your data has been unsubscribed. You will not receive new emails or calls from gafas.es. Best regards."

3rd.- Dated November 4, 2022, a copy of the email sent from the Data Protection Complaints address reclamaciones.pd@autocontrol.es, to the claimant's email address with the subject: Transfer of allegations 00002156 and where it can be read, among other things:

"In relation to your request with reference number 00002156, on November 3, 2022, we received the company's response to it, which we notify you by this means for your knowledge and analysis.

From the receipt of this notification, you have a period of 10 working days to confirm to us, by replying to this email, whether you accept the solution proposed by the company. Conversely, if you do not

agree with the company's allegations, we would need you to indicate the reasons for your disagreement so that we can convey them and try to reach an agreement.

Finally, we inform you that if you do not provide us with this information within the mentioned period, it will be considered that you abandon this mediation request as well as the conclusion of the ongoing procedure."

4th.- Dated November 4, 2022, a copy of the email sent from the claimant's email address to the email address reclamaciones.pd@autocontrol.es, in response to the previous email and where it can be read, among other things:

"Dear Sirs, I appreciate your communication and regarding the response and solution sent by the company Gafas en red Ópticas S.L., I must state that the inefficient data processing required by current regulation is evident for the following reasons: - They indicate about the "errors" detected and corrected that "it has been corrected since October 10." This statement is manifestly false as since that date, October 10, I have received SIX emails that I attach to this message. - They indicate that they became aware of my complaint on October 14 (...)

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3/14

5th.- Dated 08/11/22, a copy of the email sent from the address <> reclamaciones.pd@autocontrol.es, to the claimant's email address with the subject: "Transfer of allegations 00002156" and where it can be read, among other things:

Dear C.C.C.: In relation to your request with reference number 00002156, dated 08/11/2022, we have received the company's response to it, which we notify you by this means for your knowledge and analysis.

"Good morning: First of all, we ask you to convey our apologies to C.C.C. Indeed, the emails you provided have been sent, and we regret to confirm that he even received a final communication on the past day 4 of November. It was already known to us that Mr. C.C.C. was among those affected by the technical failure whereby some people who had unsubscribed continued to receive emails until October 10.

After reviewing the system and correcting the failure, it was frankly considered resolved, and it seems to have been so in general, as there have been no repeated complaints from any affected party, except for Mr. C.C.C. The case has been referred again to our IT Department in Germany, without it being possible to determine so far the reason why Mr. C.C.C., unlike the other affected parties, has continued to receive those emails. No indications have been found that the same technical failure has occurred subsequently, nor does it seem to be attributable to human error because, upon manual review, case by case, it was confirmed that his registration was unsubscribed. With the information available at this time, the most plausible hypothesis is that Mr. C.C.C.'s registration was manually checked shortly before the failure was definitively resolved and that unfortunately, in that brief time frame, he was affected again, remaining as an active subscriber.

To ensure that this does not happen again under any circumstances, the registration has finally been completely deleted, not just unsubscribed as the interested party had requested. The screenshots presented below serve as proof of the deletion of any registration associated with the email address (...).

6th.- Dated 10/11/22, a copy of the email sent from the claimant's email address to the address reclamaciones.pd@autocontrol.es, where it can be read:

Dear Sirs/Madams, Unfortunately, I have to contact you again. My data has not been deleted from the company's mailing database, and I continue to receive emails like the one I am attaching (...).

Attached to this email is the file: "¡Bajamos los precios por los Black days!.pdf"

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4/14

7th.- Dated 24/11/22, a copy of the email sent from the address G.G.G. ***EMAIL.1, on 24/11/22 to the claimant's email address, where the following message can be read:

"Book an appointment before Sunday!

Only during this week we give you a €40 discount on our Double Pack of progressive lenses!

Pay only €129 instead of €169!

I want to reserve this offer!

*Present the code: BLACK40 at the optical store to save the €40

Additionally, we include a one-year insurance against damage to lenses and/or frames, a visual check, and a satisfaction guarantee.

There's more! Come with a friend or family member to the optical store, and both of you will receive an extra €20 discount on any of our products.

An offer from gafas.es, a company of Gafas en Red de Ópticas S.L. Escultor Gregorio Hernández, 6, 30110, Murcia. If you wish to unsubscribe from our emails, please click on the following link:

Unsubscribe

SECOND: Dated 23/12/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the complained party, for them to analyze it and inform, within a month, about what was stated in the complaint letter.

- According to the certificate from the Electronic Notifications Service and Electronic Address, the request sent to the complained party on 23/12/22, through the electronic notifications service

"NOTIFIC@", was received at the destination on 30/12/22, with the recipient being: A.A.A.

THIRD: Dated 25/02/23, the Director of the Spanish Agency for Data Protection issued an admission agreement for processing the complaint filed, in accordance with Article 65 of the LOPDGDD, upon noting possible rational indications of a violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

FOURTH: Dated 28/04/23, the Director of the Spanish Agency for Data Protection initiated sanctioning proceedings against the complained entity, upon noting reasonable indications of a violation of the provisions established in Article 21 of the LSSI, with an initial sanction of €5,000 (five thousand euros).

FIFTH: Dated 18/05/23, the complained entity submitted a letter of allegations to this Agency, in which, among other things, it states the following:

Last Thursday, May 11, we received notification of the Agreement to Initiate Sanctioning Procedure related to File No. 202213577, opened by the complaint filed by Mr. C.C.C. in November 2022.

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5/14

This claim was communicated to us by the AEPD via electronic notification in December 2022, as correctly indicated now in point SECOND of your statement of Facts. In point FOURTH, on the contrary, it is stated: There is no record in this Agency of a written response to the request for information made to the entity being complained about on 23/12/22. We read this with great surprise since our company prepared the required report (see Attachment 1) and submitted it through the electronic headquarters on January 27, 2023, as shown (in Attachment 2) by the Proof of Submission in the Electronic Registry, with registration number REGAGE23e00005613727.

As the recipient body, the State Attorney's Office in the Data Protection Agency was selected, which, in the absence of any more specific indication, seemed the most appropriate for our response to reach the AEPD correctly. Therefore, Gafas en Red de Ópticas SLU requests:

- That the Written response signed digitally on January 27, 2023, and submitted on the same day through the electronic headquarters be considered as duly submitted,
- That, consequently, the requirement of the AEPD dated December 23, 2022, be considered fulfilled and the Agreement to Initiate Sanctioning Procedure that was notified to us on Thursday, May 11, 2023, be suspended. The following documentation is attached:

Attachment 1. Written response to the AEPD signed digitally on January 27, 2023. Attachment 2. Proof of submission in the Electronic Registry on January 27, 2023.

The written allegations are accompanied by a copy of the document submitted on January 27, 2023 (15:57:22) with registration number: REGAGE23e00005613727, addressed to: EA0009658 - State Attorney's Office in the Data Protection Agency and with the subject: "We attach the response to the request for file No.: EXP202213577"

"1. Gafas en Red de Ópticas SLU, gafas.es, is the Spanish subsidiary of the German company SuperVista AG, headquartered at Siemensstraße 2, 15711 Königs Wusterhausen, Germany. The data of customers and users of gafas.es, always obtained with their express consent, are incorporated into the automated files of our parent company, SuperVista AG, which is responsible for the data files and their processing.

2. The complainant, who was a former customer of our company for having purchased glasses, was subscribed to our newsletter and had been receiving it regularly at his email address. On September 2, 2022, he wrote to our Customer Service stating that he did not wish to receive any more newsletters and that he had clicked twice on the "unsubscribe" option without success. There was no record of any failure with that button, so we proceeded to unsubscribe him and confirmed this by replying to his email.

3. In the following weeks, some other users coincided in the complaint that they had not ceased receiving commercial communications after clicking on the unsubscribe option or having requested it by email. This prompted the team in charge to review the system used to send those communications. A failure was found in the classification of communications such that in certain cases, commercial communications (like the newsletter) were incorrectly identified as transactional (activated by the interested party, such as the response to a request for information made by the interested party by email or through the web).

Identifying this failure as the cause of the unwanted receipt of newsletters, it was corrected and resolved on October 10.

4. On October 14, through Autocontrol, we became aware of the complaint from Mr. C.C.C. for having received other newsletters after his unsubscription. And indeed, with the documentation they sent on November 4, it was confirmed that unfortunately, the complainant had received those emails, even after October 10.

The case was studied, but no real explanation or fault could be found that could have caused it, although a plausible reason was identified (a possible temporal coincidence of the review of that email and the moment of correcting the failure in October).

There was no record of any other similar case, so it was considered an isolated incident, and to ensure it did not happen again, Mr. C.C.C.'s email was deleted from the database used for sending newsletters (although the interested party had only requested unsubscription and not the deletion of data).

On November 8, a response was given through Autocontrol, providing the explanation that had been found, apologizing to Mr. C.C.C., and communicating the deletion of his email address from the newsletter subscriber list.

5. It has since been learned that this preventive deletion did not prevent Mr. C.C.C. from receiving more newsletters, because what was causing it—as was the case for some other customers who reported it later—was another underlying problem, which is explained as follows:

- Until August 2022, our company managed the sending of newsletters through the same CRM platform where the data is hosted, Hubspot. Occasionally, specific shipments were made using other tools (Newsletter2go, Sendiblu, and Sengrid).

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28001 – Madrid

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7/14

- Due to the increase in the volume of shipments, since August 10, 2022, another platform (Ongage) has been used to deliver the newsletter with news, offers, and promotions to subscribers.

- Before starting with Ongage, when the unsubscribe button was clicked by the user themselves (or when it was done from our headquarters at the request of the interested party), the unsubscribe was executed automatically in the CRM platform, the subscription was canceled, and the shipments ceased. This should also have been the case when sending with Ongage: the unsubscribe link should have passed from Ongage and been executed simultaneously on the Hubspot platform. Unfortunately, due to a communication failure between both tools, in certain cases, when the unsubscribe was ordered in Ongage, it was only executed on that shipping platform, but not on Hubspot, which meant that in the central files, the user continued to appear as subscribed and, as such, was reloaded onto the newsletter recipient lists.

6. This coincided with the migration process from the Hubspot platform to a newer one, Odoo, which SuperVista AG—our parent company and responsible for processing—has been using for just over a year in Germany, Poland, and the United Kingdom, and is progressively extending to its other European subsidiaries. In Spain, the change to Odoo was made on January 1.

When changing platforms, it has been verified that the subscription of users who had requested it in the previous platform is also canceled in the new one, as is the case with Mr. C.C.C. As an additional measure and to rule out that something similar could happen in the future, since the change to Odoo, any unsubscribe request is executed directly in duplicate in both Odoo and Ongage.

All of which is stated in order to show that our company has sought at all times to comply with Mr. C.C.C.'s wish not to receive further commercial communications, and that if in his case, and in that of a few other users, this was not possible, it was ultimately due to certain communication failures between the IT tools whose combined use coincided during that period.

With the abandonment of the platform where our database was previously hosted and its replacement with the new one, Odoo, since early January 2023, and the implementation of additional controls, it is not expected that an incident like the one that has caused repeated inconveniences to Mr. C.C.C. will occur again, for which Gafas en Red de Ópticas SLU reiterates its sincerest apologies. It is also communicated that they can send notification availability notices to the email address admin@gafas.es.

From the actions carried out in this procedure and the documentation in the file, the following have been accredited:

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8/14

PROVEN FACTS

First: The complainant states in his complaint that he continues to receive commercial emails from the entity being complained about, even after having requested that this should not happen again.

In the complaint, he provides, among other documents, the following:

1st.- Dated 02/09/22, a copy of the email sent by the complainant to the entity being complained about, requesting, according to him, for the third time, that they no longer send him advertising emails.

2nd.- Dated 04/09/22, a copy of the email sent from the entity being complained about stating that he would no longer receive advertising emails.

3rd.- Dated 04/11/22, a copy of the email sent from the AUTOCONTROL entity to the complainant attaching the response given by the entity being complained about where it expresses its willingness not to send more advertising emails to the complainant.

4th.- Dated 10/11/22, a copy of the email sent by the complainant to the AUTOCONTROL entity, stating that he continues to receive advertising emails from the entity being complained about.

5th.- Dated 24/11/22, a copy of the email sent from the entity being complained about to the complainant's email address containing advertising or promotional messages.

LEGAL GROUNDS

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Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II.-

Response to the allegations presented by the entity being complained about

Before addressing the allegations presented by the entity being complained about regarding the initiation of the file:

First, it states that, on 27/01/23 and with entry registration number in the AGE:

REGAGE23e00005613727, it submitted a written response to the request made by this Agency when the complaint was sent to it for analysis and to inform about the facts, but that, according to the initiation document of the file, said written response is not recorded as submitted in this Agency.

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9/14

Well, regarding this matter, I must state that the document submitted by the entity being claimed through the Electronic Registry of the Electronic Headquarters (General Access Point - <https://sede.administracion.gob.es/>) was addressed to “EA0009658 - State Attorney's Office at the Data Protection Agency” and not to “I00000121 - Spanish Data Protection Agency,” which is why it is not recorded as received by this Agency on 27/01/23.

It can also be verified that in the response document, there is no indication of which Agency the document is addressed to, making it impossible for the State Attorney's Office for Data Protection to forward it to the corresponding department, as only the following is stated in the heading:

“Gafas en Red de Ópticas SLU

Escultor Gregorio Hernández 6

30110 Cabezo de Torres- MURCIA

Tel: 968 977 955

E-mail: admin@gafas.es

Web: www.gafas.es

N/Ref.: EXP202213577

Subject: Response to the notification of ‘Transfer of complaint and request for Information A.A.A., with notification address at ***DIRECCION.1, in his capacity as ***PUESTO.1 of the company Gafas en Red de Ópticas SLU, with CIF B73833758, and acting on his behalf, appears in response to the request and states: (...)’

There is also no reference to the Agency to which it is addressed on the registration sheet when filling out the form, as only the following is indicated:

“Subject: Response to file No.: EXP202213577

We attach the response to the request for file No.: EXP202213577.

Request: Please take it into account for processing.

Let us remember that, in the ‘Proof of Submission’ of the document, it is expressly stated that: ‘This proof is valid for the purpose of submitting documentation in this Electronic Registry and does not prejudice the admission of the document for processing (...)’.

Therefore, it is evident that it was impossible for this document to be correctly received by this Agency (General Sub-Directorate of Inspection - I00000121), since it was initially addressed to the State Attorney's Office of the Spanish Data Protection Agency (EA0009658) and, secondly, there was no reference in the response document to the request, nor in the ‘Subject’ section of the registration form, to the actual Agency managing file EXP202213577

C/ Jorge Juan, 6

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28001 – Madrid

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10/14

(Spanish Data Protection Agency - General Sub-Directorate of Inspection), which made it impossible for it to be forwarded from the State Attorney's Office.

Notwithstanding the above, it is appropriate to take into consideration, at this point in the sanctioning procedure, the issues raised in that document, as in it, the entity being claimed acknowledges the technical error of having sent advertising emails to the complainant after he expressed his desire not to receive them and after the entity itself confirmed that this would not happen again, also indicating that necessary measures had been taken to correct it. The company assumes responsibility for rectifying the error and commits to implementing preventive measures and providing the necessary training to prevent similar situations from occurring in the future.

IV.-

Classification of the possible infringement committed

The complainant indicates in his complaint document that he continues to receive advertising emails from the entity after opposing, on several occasions, the processing of his data for the sending of commercial communications and after having received a favorable response from the entity.

For its part, the entity being claimed stated that all of this was due to a technical error and that necessary measures had been taken to correct it, assuming responsibility for implementing preventive measures to avoid similar situations in the future.

In this regard, Article 21 of the LSSI provides as follows:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily include an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited."

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11/14

Therefore, in accordance with the evidence available at this time, and without prejudice to the outcome of the investigation, the facts presented could constitute a violation of Article 21 of the LSSI by the entity being complained about for sending advertising emails after the complainant opposed receiving such electronic communications.

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with the indicated provisions, and without prejudice to the outcome of the investigation of the procedure, for the purpose of determining the amount of the sanction to be imposed in this case, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

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Section b): Duration of time during which the infringement has been committed, considering that the

complainant requested not to receive any more advertising emails on 02/09/22 and it is noted that he has continued to receive emails of this type, the last of which was on 24/11/22.

In light of all the above, the following is issued,

PROPOSAL FOR RESOLUTION

FIRST: That the Director of the Spanish Agency for Data Protection sanctions the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758, for violation of Article 21 of the LSSI, classified as "minor" in Article 38.4.d) of said regulation, with a sanction of €5,000 (five thousand euros), for resending commercial communications to the complainant after he had requested that no more commercial communications be sent to him and that the entity stated that this would not happen again. Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that he may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at €4,000 (four thousand euros) and its payment will imply the termination of the procedure.

The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. In case he opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, he must make it effective by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Likewise, he must send the proof of payment to the General Inspection Subdirectorato to proceed to close the file.

In virtue of this, he is notified of the above, and it is made clear that the procedure is open so that within TEN DAYS he may allege whatever he considers in his defense and present the documents and information he deems pertinent, in accordance with Article 89.2 of the LPACAP.

R.R.R..

THE INSTRUCTOR OF THE PROCEDURE.

ANNEX

List of documents in the Procedure PS/0096/2023, the list of documents in the procedure is notified so that he can obtain copies of those he deems appropriate:

1. Complaint and documentation
2. Agreement to initiate the sanctioning procedure.
3. Allegations to the initiation agreement and attached documents.

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SECOND: On August 23, 2023, the entity being complained about proceeded to pay the sanction in the amount of €4,000 making use of the reduction provided for in the previously transcribed proposal for resolution.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the proposal for resolution.

LEGAL GROUNDS

I

Competence

In accordance with the provisions established in Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and according to the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, in this organic law, by the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213577, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to GAFAS EN RED DE ÓPTICAS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as stipulated by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Director of the Spanish Agency for Data Protection

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